

THE COMPANIES ACT, 1994
(ACT XVIII OF 1994)

A PRIVATE COMPANY LIMITED BY SHARES

MEMORANDUM

&

ARTICLES OF ASSOCIATION

OF

AVENUE CONSTRUCTIONS
LTD.



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A PRIVATE COMPANY LIMITED BY SHARES
MEMORANDUM OF ASSOCIATION
OF
AVENUE CONSTRUCTIONS LTD.

I. The name of the company is AVENUE CONSTRUCTIONS LTD.

II. The registered office of the company shall be situated in Bangladesh

III. The objects for which the company is established are all or any of the following (all objects will be implemented after obtaining necessary permission from the Government/concerned authority/competent authority before commencement of the business):

1	To carry on the business of real estate, housing and apartment and carry on the business of buyer, seller of flats, plot, apartment, buildings rooms, huts and to undertake construction of Super market, Shopping centre, shopping complex, community centre's and to arrange for sale or let out of those to general public or to hold it for their management and by planting, paving, drawing, forming, cultivation, letting on building, lease or building agreement and by advancing money to and entering into contacts arrangements of all kinds with builders, tenants and others. To build and let house, super market, mansion, shops, offices, show rooms and other places of residence or business, to fit up the same and to erect and maintain warehouses, godowns and other buildings.
2	To do and carry on the business of development of multi-storied building and apartments and sell and dispose of the said buildings and apartments and business of builder, engineers, architects and contractors and to build townships, gardens, markets, housing estates or other buildings or conveniences, drainage facilities, utility services electricity, water supply, sewerage installations and to deal with the same in any manner.
3	To carry on the business of Real Estate by acquiring land and constructing modern Apartments and selling thereof. To carry on the business of Housing Apartment project housing facilities by purchasing land or disposing/sale and by way of joint venture with the land owner. To carry on the business as developer of Land and constructor of building both residential and commercial either alone or joint venture. To carry on the business of being middleman regarding sales and purchase of land and building for the interest of the Company.
4	To carry on the business of General Trading, Export and Import of all commercial permissible items, Dealers, indenters, Brochure, Manufacturing, contractor, general supplier, buying and selling agent, wholesale and distributors dealers, carrying of all and even/king of general and special products, goods, substance and materials. To import machineries, raw materials, spare parts of all sorts required for the factory and purpose of building construction & related with this business.
5	To carry and establish a Readymade Garments Factory for the purpose of manufacturing various types of garments products, trousers, shirts, children wear, male/female wear of standard sizes and quality made cotton, tetron, nylon, silk, artificial silk, jeans, synthetic fabrics, wool acrylic and also to buy, sell, import, export and otherwise deal in all sorts of yarn, fabrics and products and by products thereof. To produce various types of readymade Garments viz embroidery men's shirt, trousers, baby dresses, jeans pant and shirts, sports dresses, women's dresses, Blouses & frock, T-shirt, tan top of international standard and designs of export oriented or any other readymade garments.
	To carry on all or any of the business of dressmakers, designers tailors, clothing, outfitters, glover dealer in readymade garments, cotton, nylon, artificial silk, woolen goods, jumper and knitting of all shorts.
	To set-up establish and maintain industries for manufacturing of steam boiler, stem



	iron, steam roller, vacuuming table, water softener, thread sucking machine, thread rewinding machine, aluminum, M.S.sheet & S.S sheet, perforated and plain praline, ceiling unit, tee bar, angel, zed and U sections and all sorts of aluminum/MS/SS fitting of road transport, rail coach, textile sections and air condition grills & diffusers fabricator. To carry on business of Steel/SS door, window and pipe line installation. To carry on the business of acoustical works, consultants, Armstrong and allied types of metal suspension system of false ceiling and interior decoration. To carry on the business of producer & manufacture all sorts of aluminum/Steel furniture, anodizing, elector-galvanizing and all kinds of nickel works.
8	To attain the business objectives company may enter into Partnership, Joint-venture, take over or Amalgamate with any other company and also to take Loans from Bank/other Financial Institutions in such a manner as may company thinks fit.
9	To mortgage the property and assets of the company as securities for loans and/or any credit facilities to be given to any associate company or companies or third party and also to give guarantee securing liabilities of such associate company or companies and/or third party.

IV. The liability of the members of the company is limited by shares

V. The Authorized Share Capital of the Company is TK. 10000000 (One Crore) divided into 100000 (One Lac) Ordinary Shares of TK 100 (One Hundred) each with power to increase or reduce the capital and to divide the shares into different classes and to attach thereto any special right or privileges or conditions as regards dividends, repayment of capital, voting or otherwise or to consolidate or sub-divide the shares.



This document is digitally signed. Please find the soft copy to verify the signature.

We, the several persons, whose names addresses are subscribed below are desirous of being formed into a company in accordance with this Memorandum of Association and we respectively agree to take the number of shares in the capital of the company set opposite to our respective names.

SL No.	Name	Position	No. of Shares Taken	Signature of subscribers
1	Name : Mst. Sayedatunnahar Father's Name : Late Moshir Rahman (Mahabubur Rahman) Mother's Name : Mst. Meherunahar Address : 47, Flat No. 8-B (8th floor), Purana Paltan, Dhaka-1000., Dhaka Date of Birth : 06-JUN-82 E-mail : sayedatun1982@gmail.com Phone : 01728753027 TIN : 391026888762 NID/Passport No. : 1020167183 Nationality : Bangladeshi	Chairman	10000 (Ten Thousand shares)	sd/-
2	Name : Md. Golam Rosul Father's Name : Md. Dalil Uddin Mother's Name : Mrs. Jahanara Begum Address : 47, Flat No. 8-B (8th floor), Purana Paltan, Dhaka-1000., Dhaka Date of Birth : 01-MAR-84 E-mail : grshanto@gmail.com Phone : 01714767246 TIN : 728597984337 NID/Passport No. : 19844414267630083 Nationality : Bangladeshi	Managing Director	10000 (Ten Thousand shares)	sd/-

<u>Witness 1</u>	<u>Witness 2</u>
Name : Md. Ashikur Rahman Address: 51,51/A,Purana Paltan Dhaka-1000 Phone : 01842944422 NID : 4662502840	Name : Md. Sohanur Rahman Address: 51, 51/A,Purana Paltan, Dhaka-1000 Phone : 01796479517 NID : 9156346729



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THE COMPANIES ACT, 1994
(ACT XVIII OF 1994)
A PRIVATE COMPANY LIMITED BY SHARES
ARTICLES OF ASSOCIATION
OF
AVENUE CONSTRUCTIONS LTD.

PRELIMINARY

1. The Regulations contained in the schedule-1 of the companies Act , 1994 shall apply to this company with respect to such provisions as are applicable to a Private Limited Company , so far only as they are not negative or modified by or are not contained in the following articles or any other articles that may from time to time be framed by the company.

INTERPRETATION

2. In construing of these Articles unless there shall be something repugnant in the subject or context inconsistent there with :-
 - a. "Act" means the Companies Act, XVIII of 1994.
 - b. "Company" means the AVENUE CONSTRUCTIONS LTD.
 - c. "Office" means the Registered Office of the Company for the time being.
 - d. "Year" means the English Calendar year as followed by the Company.
 - e. "Month" means the calendar month according to the English Calendar year.
 - f. ¿Chairman¿ means the chairman of the Company for the time being elected/appointed.
3.
 - g. ¿Managing Director¿ means the Managing Director of the Company for the time being elected/appointed.
 - h. "Directors" means the Board of Directors of the Company for the time being.
 - i. "Board" or "Board of Directors" means the Board of Directors of the Company for the time being.
 - j. "Member" means the legal owner the share name where of being appeared in the Members register.

PRIVATE COMPANY

4. The Company is a Private Limited Company within the meaning of section 2(1) under clause (Q) of the companies Act,1994 and accordingly the following shall apply:-
 - a. No invitation shall be issued to the public to subscribe for any share, debenture of the company;
 - b. The number of members of the Company (exclusive of the persons in the employment of the company) shall be limited to fifty; and
 - c. The right to transfer shares of the company is restricted in the manner and to the extent hereinafter provided.

SHARE CAPITAL

5. The Authorized Share Capital of the Company is TK. 10000000 (One Crore) divided into 100000 (One Lac) Ordinary Shares of TK 100 (One Hundred) each with power to increase or reduce the same value of its shares. Subject to the provisions of the Articles, the share shall be under the control of the directors who may allot or otherwise dispose of the same.



BUSINESS

6. The business of the company shall include all or any of the several objects expressed in the Memorandum of Association. The company shall be entitled to commence business from the date of incorporation.

SHARE CERTIFICATE

7. The certificate of title to share and duplicate thereof whenever necessary shall be issued to the members of the company and shall be signed by the Chairman and Managing Director of the company.

If any share certificate is defaced, worn out, destroyed or lost, it may be re-issued on such evidence being produced and such indemnity (if any) being given as the Directors require and (in case of defacement or wearing out) on delivering of the old certificate and on payment of such sum not exceeding Tk.10.00 as the Directors may from time to time require.

LIEN

8. The company shall have a paramount lien on every share (not being a fully paid share) for all moneys called or payable at a fixed time in respect of that share, and the company shall also have a paramount lien on all shares (other than fully paid shares) standing registered in the name of a single person for all moneys presently payable by him or his share to be wholly or in part exempt from the provisions of this clause the company's lien, on a share shall extend to all dividends payable thereof.
9. The Company may sell, in such manner as the Director thinks fit, any share on which the Company has a lien, but no sale shall be made unless such sum in respect of which the lien exists is presently payable and until the expiration of fourteen days after a notice in writing stating and demanding payment of such part of the amount in respect of which the lien exists as is presently payable, has been given to the registered holder for the time being of the share, or the person entitled by reason of death or insolvency to the Share.
10. The proceeds of the sale shall be applied in payment of such part of the amount in respect of which the lien exists as is presently payable, and the residue shall (subject to a like lien for sums not presently payable as existed upon the share prior to the sale) be paid to the person entitled to the shares at the date of the sale. The purchaser shall not be bound to see to the application of the purchase money, nor shall his title to the shares be affected by any irregularity or invalidity in the proceedings in reference to the sale.
11. The Directors may from time to time make calls upon the Members in respect of any moneys unpaid on their shares, and each member shall (subject to receiving at least fourteen days notice specifying the time or times of payment) pay to the company at the time or times so specified the amount called on his shares.

TRANSFER AND TRANSMISSION OF SHARES

12. No transfer of any share shall be made or registered without the approval of the Board of Directors who may without assigning any reason decline to give any such approval and shall decline any transfer involving contravention of clause 3(b) of these articles. No share shall be transferred to any outsiders as long as any existing member is willing to purchase the same at a fair value to be determined by the Directors in a Board Meeting.



13. The certificate of shares shall accompany the Instrument of Transfer of shares for transfer of shares previously approved by the Board of Directors. In the case of death of a member, the survivor where the deceased was a joint holder, and the legal personal representative of the deceased where he was a sole holder, shall be the only persons recognized by the company as having any title to his interest in the shares, but this Articles does not release the estate of a deceased sole/joint holder from any liability in respect of the said share.

ALTERATION OF CAPITAL

14. The Directors may, with the sanction of the company in General Meeting increase the share capital such sum, to be divided into shares of such amount, as the resolution shall prescribe. The company may by special resolution, reduce its shares capital in any manner and with and subject to any incident authorized and consent required by law.

BORROWING POWERS

15. The Managing Director may from time to time with the approval of the Board of Directors may borrow from any source either from any commercial or schedule banks, or financing institutions or firms any sum of money required for the purpose of the company and secure the payment or repayment of such money so borrowed in such manner and upon such terms and conditions in all respects duly approved by the Board of Directors deemed fit in particular by hypothecation or charge on all or any part of the property of the company (both present and future) including its uncalled capital for the time being.

GENERAL MEETING

16. The general meeting of the company shall be held within 18 (eighteen) months from the date of incorporation of the company and thereafter once in every calendar year (not being more than fifteen months after holding of the last preceding general meeting) at such time and place as may be decided by the Directors of the company. The above mentioned general meeting shall be called "ORDINARY GENERAL MEETING" and all other general meeting of the company shall be called "EXTRA-ORDINARY GENERAL MEETING".

17. The Directors may at any time call an extra-ordinary general meeting and an extra-ordinary general meeting may also be called on requisition made by the shareholders in accordance with the provisions of section 84 of the companies Act 1994.

PROCEEDING AT GENERAL MEETING

18. Subject to the provision of section 87(2) of the Companies Act, relating to special resolutions at least fourteen days notice specifying the place, the day and the hour of the general meeting and in case of special business, the general nature of such business, shall be given to the members in such manner as may be prescribed by the company in a general meeting, but accidental omission to give such notice, to or non-receipt of such notice by any member shall not invalidate the proceedings of the general meeting. A general meeting may, with the consent in writing of all the member be convened by a shorter notice and in any manner they think suitable.

No business shall be transacted at any general meeting unless the quorum of members is present at the time when the meeting proceeds to transact business. 02 (Two) members personally present shall form the quorum of any general meeting.

VOTE OF MEMBERS

No member shall be entitled to vote unless all installments or calls or other sum or



sums presently payable by him, in respect of his holding of shares in the company has been paid.

DIRECTORS

20. Unless Otherwise determined by the company in general meeting the number of directors shall not be less than 2(Two) and not more than 50(Fifty).The following persons shall be the first directors of the company unless anyone of them voluntarily resigns the said office or otherwise removed therefrom under the provisions of section 108(1) of the companies Act, 1994.

1. Mst. Sayedatunnahar
2. Md. Golam Rosul

21. The qualification of a Director shall be holding of share of 10,000 (Ten Thousand) ordinary shares of Tk.100/- each in the Share Capital of the Company in his/her own name alone and not jointly with any others.

The remuneration of a Director shall not exceed Tk.500/- (Taka five hundred) will be 1000 each for meeting of the Directors attended by him together with such traveling and other expenses as may be incurred for attending the meeting.

22. If any Director be called upon to perform any extra service or to make any special exertion for the Company, the Directors so doing may be remunerated either by a fixed sum or by a percentage on the profit of the Company as may be decided by the Company in General Meeting.

Every Director shall vacate his office in the event of:

- a) He is failing to obtain the qualifying share.
- b) He becoming bankrupt or insolvent or on becoming unsound mind.
- c) He resigning from the office by giving notice in writing to the company.
- d) And if he acts in contravention of the section 86(f) of the Companies Act 1994

PROCEEDING OF DIRECTORS

23. A resolution or circular in writing signed by all the Directors shall be as valid and effectual as if it has been passed at a meeting by the Board of Directors duly called and constituted. The Chairman of the company may at any time convene a meeting of the Board of the Directors but when any other Director to convene a meeting of the Board of Directors he or she shall give notice of its or of her intention to the Chairman who shall proceed to convene the meeting within two weeks of such notice.

POWER OF DIRECTORS

24. The Management and control of the business of the company shall be vested in the Board of Directors. The Board of Directors shall have power at any time and from time to time to appoint any other person to be a Director of the company either to fill up a casual vacancy or an addition to the Board by Co-option so that the total number of Directors shall not be any time exceed the maximum number of Directors fixed by the company.



The management of the business of the Company shall be in the hands of the Board

of Directors who may pay such expenses of any preliminary and incidental to the promotion, establishment and registration of the Company and do such acts as may be exercised and done by the Company as are not forbidden by the state or by this Articles required to be exercised or done by the Company in general meeting, subject nevertheless, to any regulation to be inconsistent with the aforesaid regulations or provisions as may be prescribed by the Company in General Meetings, which shall be valid and effectual.

Each Director shall be responsible for proper discharge of the Company's business that may be entrusted to him/her by the Board.

DISQUALIFICATION OF DIRECTORS

26. In provision of Section 108 (1) and 94 (1) of the Companies Act. 1994, the office of the Directors shall be vacated if he/ she.
- I. Fails to obtain within the time specified in provision of Section 97 (1) of the Companies Act. 1994 or any time thereafter ceases to hold the share qualification necessary for his / her appointment, or He/ she is found to be a person of unsound mind by a court of competent jurisdiction.

CHAIRMAN

27. Mst. Sayedatunnahar shall be the First Chairman of the Company from the date of Incorporation. He shall be entitled to remain and continue the said office for a period of 15 (Fifteen) years or he resigns voluntarily or disqualified under the provision of the Company Act.1994 or until otherwise determined by the Company's Board meeting or extra ordinary general meeting. The Chairman shall be the head of the company and he shall be responsible to the Board and will carry out such functions as delegated by the Board. The chairman may nominate any Director of the Board to act on his behalf during his absence for a period not exceeding three months. The chairman will preside over the Board and Annual General Meeting of the company and he will have preserved the casting vote if the Directors divide into their opinion or at the time of taking decision.

MANAGING DIRECTOR

28. Md. Golam Rosul shall be the first Managing Director of the Company from the date of Incorporation. He shall be entitled to remain and continue the said office for a period of 15 (Fifteen) years or he resigns voluntarily or disqualified under the provision of the Company Act.1994 or until otherwise determined by the Company's Board meeting or extra ordinary general meeting. His remuneration shall be fixed by the general Meeting.

Without prejudice to the general power as stated above the Managing Director shall exercise the following powers with the approval of the board of Directors:

- a) To purchase or otherwise acquire for the company, property, right or privileges which the company is authorized to acquire at such prices and generally in such terms and conditions as he thinks fit but passed by board resolution.
29. b) To make, draw, endorse, sign, negotiate and give all cheques, bill for lading, orders and promissory notes and negotiable instrument required in the business of the company and may also sign and give all effectual receipts and discharge for money payable to the company and for the claims and demands for the company pursuant to clause 37b(i) and 37b(ii).
- c) To sign documents for and on behalf of the Company or to delegate the power to any Director, officer person or attorney and subject to approval of the Board to give general power of attorney on behalf of the Company.
- d) To purchase, sell, left out or exchange or otherwise dispose of absolutely or conditionally and property asset of the Company for the purpose of the Company,



subject to the approval of the Board of Directors.

30. e) To secure the fulfillment of any contracts or engagement entered into by mortgage or charge of all or any of the property of the company and its unpaid and/or uncalled capital for the time being or in such other manner as he think fit but passed by board resolution.
f) To appoint, remove or suspend such secretaries, officers, clerks, assistants, employees, technicians and other servants or permanent, temporary or special services as they may from time to time think fit and to determine their duties and fit their salaries or emoluments to require security in such instances and to such amount as he thinks fit and to promote, transfer or re-designate any employee.
g) To institute, conduct, defend, compound or abandon any legal proceeding against the company or its officers or otherwise concerning the affairs of the company and also to compound and allow time for payment or satisfaction of any debts due to and of any claims or demands by or against the company.
31. h) To refer any claims or demands by or against the company to arbitrations and observe and perform the awards;
i) To insure all such property movable or immovable goods belonging to the company, which may be of an insurable nature against such Hicks and contingencies as they may deem, fit.
j) To invest the moneys of the company not immediately required for the purpose thereof upon such securities (not being shares in this company) and in such manner as he may think fit and from time to time van/ or realize such investments with the approval of the board.
32. k) From time to time make, vary and repeal by-laws for the regulation of the business of the company and its offers and servants.
l) To enter into all such negotiations contracts and rescind and vary all such contracts and execute and do all such acts, deeds and things in the name and on behalf of the company as he may consider expedient for the purpose of the business of the company.
m) To delegate all or any of the powers therein contained to any person or persons by an appropriate power of attorney or otherwise for exercise of all or all or any of this powers as he may deem fit and proper and to revoke the same at his pleasure with the approval of the board.

BANK ACCOUNT

33. The company shall open Bank Account(s) with any schedule Bank in Bangladesh and abroad and shall be operated the same by the Joint Signature of the Chairman & Managing Director or as per decision by the Board of Directors of the company.

NOTICE

34. When a notice is sent by post, service of the notice shall be deemed to be effected by properly addressing, preparing and posting a letter containing the notice and unless the contrary is proved, to have been effected at the time at which the letter would be delivered in the ordinary course of post. Al notice may be given either personally or by advertisement or by sending it by post to his registered address.



ACCOUNTS AND AUDIT

35. The Directors shall cause to be kept proper books of account with respect to:-
- a) All sums received and spent by the Company.
 - b) All sales and purchases of goods and services by the Company.
 - c) The assets and liabilities of Company.
 - d) The books of account shall be kept at the registered office of the Company or at such place as the Directors shall think suitable and shall be open to inspection by the Directors during business hours.
 - e) Once at least every year the accounts of the Company shall be examined and the correctness of the profit and loss account and balance sheet ascertained by one or more Auditors appointed for the purpose and the provision of section 210 to 213 of the companies Act 1994. The company in general meeting shall fix the remuneration of the auditors except that they fix the remuneration of any auditor appointed by the Board of Directors.

INDEMNITY

36. The Managing Director and Directors, Officer, Servant shall be indemnity by the Company for all losses and expenditure incurred by him or them respectively in or about the discharge of their duty except their willful Act, neglect or default and shall be the duty of the directors to pay out of the fund of the company in cash all losses and expenses which the Managing Director or any other directors, officers or servants may in any way incur in the discharge of his or their duties and the amount for which indemnity is provided shall immediately attach a lien on the property of the company and have priority over all claims.

AMENDMENT OF ARTICLES

37. These articles may be amended modified repeated and three- Six majority of the members present and voting on a special resolution for the purpose at an Extraordinary General Meeting of the members, provided that a notice in writing specifying the intention to propose the resolution of the company at least twenty one days prior to the meeting.

SECRECY

38. Every Director, manager, Auditor, trustee, officer, servant, agent, accounts or other person employed in the business of the company shall, if so required by the Board before entering upon his duties, sign a declaration pledging himself to observe strict secrecy respecting all transactions of the company with the customers and the state of account with individuals.

ARBITRATION

39. If and whenever any difference shall raise between the Company and any of the members of their representative touching the construction of any of the Article herein contained or any Act. matter or thing mad, done or omitted in regard to the rights and liabilities arising hereunder or arising out of the regulation existing between the parties by reasons of these presents or of the statutes or any of them, such difference shall be forthwith referred to two Arbitrators, one to be appointed by each party and difference to an Umpire to be chosen by the Arbitrators before entering on the consideration in accordance with the provisions of the Arbitration Act, 2001.

WINDING UP

40. In case of the wound up of the company, the surplus assets shall (subject to any rights attached to special class of shares forming part of the share capital for the time being of the company) be applied first in the payment of the capital paid up on the ordinary shares and the excess (if any) shall be distributed among the members holding ordinary share in proportion of the member of ordinary shares held by them



respectively at the commencement of the winding up.



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We, the several persons, whose names addresses are subscribed below are desirous of being formed into a company in accordance with this Articles of Association and we respectively agree to take the number of shares in the capital of the company set opposite to our respective names.

SL No.	Name	Position	No. of Shares Taken	Signature of subscribers
1	Name : Mst. Sayedatunnahar Father's Name : Late Moshir Rahman (Mahabubur Rahman) Mother's Name : Mst. Meherunahar Address : 47, Flat No. 8-B (8th floor), Purana Paltan, Dhaka-1000., Dhaka Date of Birth : 06-JUN-82 E-mail : sayedatun1982@gmail.com Phone : 01728753027 TIN : 391026888762 NID/Passport No. : 1020167183 Nationality : Bangladeshi	Chairman	10000 (Ten Thousand shares)	sd/-
2	Name : Md. Golam Rosul Father's Name : Md. Dalil Uddin Mother's Name : Mrs. Jahanara Begum Address : 47, Flat No. 8-B (8th floor), Purana Paltan, Dhaka-1000., Dhaka Date of Birth : 01-MAR-84 E-mail : grshanto@gmail.com Phone : 01714767246 TIN : 728597984337 NID/Passport No. : 19844414267630083 Nationality : Bangladeshi	Managing Director	10000 (Ten Thousand shares)	sd/-

<u>Witness 1</u>	<u>Witness 2</u>
Name : Md. Ashikur Rahman	Name : Md. Sohanur Rahman
Address: 51,51/A,Purana Paltan Dhaka-1000	Address: 51, 51/A,Purana Paltan, Dhaka-1000
Phone : 01842944422	01796479517
NID : 4662502840	Phone : 9156346729

